

**SUBSTITUTE FOR
HOUSE BILL NO. 6080**

A bill to amend 1976 PA 451, entitled
"The revised school code,"
by amending section 1248 (MCL 380.1248), as amended by 2023 PA 116.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1248. (1) This section does not prohibit, impair, or
2 limit the right or duty of a public school employer and a
3 collective bargaining representative to engage in collective
4 bargaining under 1947 PA 336, MCL 423.201 to 423.217. However, a
5 collective bargaining agreement must include, at a minimum, the
6 standards in this section.

7 (2) For teachers, as defined ~~under~~**in** section 1249, when
8 filling a vacancy, **determining a promotion**, placing a teacher in a
9 classroom, or conducting a staffing or program reduction or any



1 other personnel determination resulting in the elimination of a
 2 position, the board of a school district or intermediate school
 3 district or the board of directors of a public school academy shall
 4 not adopt, implement, maintain, or comply with a policy or
 5 collective bargaining agreement that provides length of service as
 6 the sole factor in personnel decisions. This subsection does not
 7 prevent length of service from being considered as a tiebreaker if
 8 a personnel decision involves 2 or more employees and all other
 9 factors distinguishing those employees from each other are equal.

10 (3) The board of a school district or intermediate school
 11 district or board of directors of a public school academy shall
 12 adopt, implement, maintain, and comply with clear and transparent
 13 procedures for all personnel decisions under this section.
 14 Effectiveness as measured under the performance evaluation system
 15 in section 1249 or as otherwise collectively bargained must be used
 16 as a factor for personnel decisions under this section. Any other
 17 relevant factors may be used for personnel decisions under this
 18 section, including, but not limited to, the following:

19 (a) The teacher's length of service in a grade level or
 20 subject area.

21 (b) The teacher's disciplinary record.

22 (c) Relevant special training. This factor may be based on
 23 completion of relevant training other than the professional
 24 development or continuing education that is required by the
 25 employer or by state law, and integration of that training into
 26 instruction in a meaningful way. **Any coursework considered under**
 27 **this subdivision must meet at least both of the following:**

28 (i) **Be degree-eligible credit offered by an institutionally**
 29 **accredited higher education institution and documented on an**



1 official academic transcript.

2 (ii) Result in a letter grade. Coursework graded solely on a
3 pass/fail, satisfactory/unsatisfactory, or completion basis is not
4 eligible for consideration under this subdivision unless converted
5 to a letter grade consistent with institutional grading standards.

6 (4) As used in this section:

7 (a) "Coursework" means any course completed by a certificated
8 teacher for the purpose of salary advancement, salary lane change,
9 or other compensation-related advancement under a collective
10 bargaining agreement, school district policy, or salary schedule.

11 (b) "Degree-eligible credit" means academic credit provided by
12 an institutionally accredited higher education institution that may
13 be applied toward a bachelor's degree, postbaccalaureate credential
14 or certificate, master's degree, education specialist degree, or
15 doctoral degree.